

# Arms and Ammunition Act, 1962

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Arms and Ammunition Act, 2019

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Acts Amending This Act

1. Judicial Administration Reform Act, 2031 2031.4.18
2. Some Nepal Acts (Amendment) Act, 2043 2043.7.24
3. Judicial Administration Reform (Fourth Amendment) Act, 2043 2043.7.24
4. Arms and Ammunition (First Amendment) Act, 2048 2048.7.11
5. Judicial Administration Act, 2048 2048.2.16

Certification and Publication Date

6. Arms and Ammunition (Second Amendment) Act, 2064 2064.9.22
7. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7
8. Some Nepal Acts Amendment Act, 2072 2072.11.13
9. Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074 2074.6.30

Act No. 54 of the year 2019

An Act Made to Consolidate and Amend the Nepal Laws Relating to Arms and Ammunition

Preamble: Whereas, it is desirable to consolidate and amend the prevailing Nepal laws relating to arms and ammunition for the purpose of maintaining the security, peace and order of Nepal,

Therefore, His Majesty King Mahendra Bir Bikram Shah Deva has enacted this Act in accordance with Article 93 of the Constitution of Nepal. 1. Short Title, Extent and Commencement: (1) This Act may be called "The Arms and Ammunition Act, 2019".

(2) This Act shall extend to the whole of Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Provided that nothing in this Act shall apply to the making, repairing, converting from one form to another, selling, offering for sale, carrying, possessing in one's person or control, exporting from Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. to abroad, importing from abroad into Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. or bringing or taking from one district to another district within Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. of arms and ammunition by order of the Government of Nepal or by order given by a government employee in the course of performing his duty in that capacity.

(3) This Act shall come into force on such date as the Government of Nepal may, by notification published in the Nepal Gazette, appoint. 2.

Definitions: Unless the subject or context otherwise requires, in this Act,- (a) amended by Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. "Arms" means cannon, mortar, armored vehicle, machine gun, rifle, gun, pistol, revolver or other instruments of similar nature operated with or without the use of ammunition, and the said term shall also include machines, equipment and spare parts for making arms. (b) amended by Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. "Machine Gun" means Bren gun, Lewis gun, Sten gun, Machine, Carbine, Tom's Machine Carbine, G.M.G., L.M.G., Short Machine Gun or automatic arms of similar nature, and the said term shall also include machines, equipment and spare parts for making machine guns. (c) amended by Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. "Ammunition" includes gunpowder, caps, bullets, pellets, detonators, cartridges, fuses or other substances of similar nature used in arms. (d) removed by Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. (e) removed by the First Amendment. (f) "License" means a license obtained under this Act in relation to arms and ammunition, and "Licensee" means a person obtaining such a license. (g) "Prescribed" or "As prescribed" means prescribed or as prescribed in the rules or orders made under this Act. 3. License Required: Any person desiring to do any of the following acts shall obtain a license under this Act:- (a) To make or repair arms or ammunition, (b) To export or import arms or ammunition, (c) To keep or carry arms or ammunition. 3A. Approval Required: added by Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. (1) No person shall sell or transfer personal-use arms or ammunition in their possession to another person, except in circumstances prohibited by prevailing law, without obtaining approval from the relevant District Administration Office by specifying the name, surname, address and citizenship number of the person purchasing or receiving them. (2) A person acting contrary to sub-section (1) shall be liable to imprisonment for up to two years and a fine of up to twenty thousand rupees. 4.

Prohibition on Bringing or Taking: (1) No person shall bring cannon or machine guns from abroad into Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066., take them from Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. to abroad, or bring or take them from one district to another within Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.. (2) Without obtaining a license or without adhering to the conditions specified in the license, no person shall bring arms or ammunition from abroad into Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066., take them from Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. to abroad, or bring or take them from one district to another within Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.. 5. Prohibition on Carrying Arms Without License: (1) No person shall carry arms without obtaining a license or without adhering to the terms and conditions specified in the license. (2) amended by Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. If a person committing an offense contrary to sub-section (1) needs to be arrested, an application shall be submitted to the relevant adjudicating officer seeking permission for arrest, along with the reason for such arrest and details identifying such person. (3) added by Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. If the reason for arrest appears reasonable from the application submitted pursuant to sub-section (2), the adjudicating officer may grant permission to issue an arrest warrant. (4) added by Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. A person for whom an arrest warrant has been issued pursuant to sub-section (3) shall be arrested by the Chief District Officer or a person deputed by him or the police and produced before the adjudicating officer within twenty-four hours, excluding

travel time. (5) added by Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. Notwithstanding anything written in sub-section (2), if a person carrying arms without a license or against this Act is not arrested immediately, or if there is reasonable cause to believe that such person may flee, escape or destroy evidence or proof, such person may be immediately arrested anywhere by issuing an urgent arrest warrant, the arms in their possession shall be seized, and they shall be produced along with the arrested person before the adjudicating officer for approval. 5A.

Prohibition on Carrying Arms During Election Period: added by Some Nepal Acts (Amendment) Act, 2043. (1) Notwithstanding anything written elsewhere in this Act, amended by the Republic Strengthening and Some Nepal Laws (Amendment) Act, 2066. from the date of filing of candidacy for an election conducted by the Election Commission pursuant to prevailing law until seven days after the declaration of election results, no person, other than government employees responsible for security, shall carry even licensed arms within the election constituency. (2) If any person carries arms contrary to sub-section (1), such person shall be treated as carrying arms without a license and shall be proceeded against under Section 5. 6. Search and Arrest of Persons Suspected of Carrying Arms, Ammunition: (1) If there is suspicion that a person is exporting, importing, or transporting arms or ammunition from one district to another amended by Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. without a license or, even if licensed, for any unlawful purpose, a police officer of the rank of Assistant Inspector or above may stop and search the person, vehicle, package, load, porters and boxes used for transportation, and if such items are found, arrest such person without a warrant and seize such arms or ammunition. (2) The person arrested and the arms or ammunition seized under this section shall be produced amended by Some Nepal Acts Amendment Act, 2072. before the adjudicating officer within twenty-four hours, excluding travel time. 7. Office or Post for Conducting Searches: The Government of Nepal may, if deemed necessary, establish search posts for arms or ammunition at the border between the territory of Nepal and foreign territory, and a person authorized by the Government of Nepal may stop vehicles, porters, or animals carrying loads at such places and search the boxes and packages used for transportation. 8. Prohibition on Keeping Arms, Ammunition at Certain Places: The Government of Nepal may, by notification published in the Nepal Gazette, prohibit any person from keeping any specified type of arms or ammunition at a designated place. 9.

Surrender of Arms and Ammunition to Police Station: (1) If the license period of any person keeping arms and ammunition expires, or if the license is cancelled, or if keeping such arms or ammunition becomes unlawful due to notification published under Section 8 or any other reason, such arms or ammunition shall be immediately surrendered to the local police office, and the police office shall accept them and proceed according to prevailing law. (2) After surrendering arms or ammunition pursuant to sub-section (1), the person surrendering them may, even before the expiry of the period prescribed in the rules made under this Act, again obtain the following rights:- (a) If it becomes lawful to keep the surrendered arms or ammunition in one's possession, to get such arms or ammunition back, (b) To sell or cause to sell the surrendered arms or ammunition to a person lawfully entitled to keep them, and to take the profit from such sale. Provided that, removed by Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. nothing in this sub-section shall be deemed to grant the right to recover or sell any confiscated arms or ammunition. (3) Arms or ammunition collected and not returned pursuant to sub-section (2) within the prescribed period shall become the property of the Government of Nepal. (4) Without prejudice to the generality of the foregoing sections, the Government of Nepal may make rules on the following matters:- (a) In what circumstances and conditions a licensee must surrender arms or ammunition, and (b) After the expiry of what period arms or ammunition shall be confiscated under sub-section (3). 10. Manner of Obtaining or Renewing License: (1) Any person desiring to obtain a license under this Act shall submit an application to the Chief District Officer

in the prescribed form and with the prescribed fee. (2) After an application is filed under sub-section (1), the Chief District Officer shall conduct necessary inquiries as prescribed, and if upon inquiry it appears reasonable to grant a license permitting the acts stated in the application, he may issue a license in the prescribed form to the applicant, subject to prescribed terms and conditions. (3) The validity period of each license issued under sub-section (2), the manner of renewing it, the place, and the fee for such renewal shall be as prescribed. 11.

**Power to Cancel or Suspend License:** (1) If deemed necessary for public peace and security, the Chief District Officer may, by an order recording reasons, cancel or suspend all or some licenses in all places within his jurisdiction or in any part thereof. (2) If any licensee is found guilty under this Act or the rules made under this Act, the Chief District Officer may cancel or suspend his license. (3) The Government of Nepal may, by notification published in the Nepal Gazette, cancel or suspend all or some licenses throughout Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. or in any part thereof.

**12. Power of Chief District Officer to Conduct Search, Seize:** If a Chief District Officer has credible suspicion that any person residing within his jurisdiction is in possession of any arms or ammunition without a license or for an unlawful purpose, or if the Chief District Officer believes that allowing such person to keep the arms or ammunition would not be appropriate for public peace, he may, by an order recording reasons, and based on such order, search or cause to search the house, land or other suspected place of such person, and seize any arms or ammunition, whether licensed or not. While conducting or causing to conduct such search, the Chief District Officer must do so or cause to do so only in the presence of an employee from another office as a witness. **13. Government of Nepal's Power to Seize and Detain:** Even if a person has obtained a license to keep arms or ammunition, the Government of Nepal may, if deemed necessary for public safety, order at any time to seize and detain the arms or ammunition in such person's possession. **14. Government of Nepal's Power to Exempt:** The Government of Nepal may, from time to time, by notification published in the Nepal Gazette, direct that all or any provisions of this Act shall not apply, or shall apply with modifications specified in the said notification, in relation to any person or persons, or in any specific area, or in relation to any specific type of arms or ammunition. **15. Power to Require Inventory of Arms, Ammunition:** The Government of Nepal may, from time to time, by notification, direct any person keeping arms or ammunition at any place specified in the said notification within Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. to furnish an inventory thereof to the prescribed authority.

After such notification is published, all persons keeping relevant arms or ammunition shall submit the inventory as requested by the prescribed authority, and shall also show such arms or ammunition if the authority wishes to inspect them. **16. Power to Confiscate Arms, Ammunition, and Related Items:** If a person is proved to have committed an offense relating to amended by Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. arms and ammunition, the amended by Some Nepal Acts Amendment Act, 2072. adjudicating officer may confiscate all or any of the arms or ammunition related to the offense in the possession of such person, or the vehicle, animal, box or bag used in connection therewith, and vest them in the Government of Nepal. **17. Confiscation for Failure to Submit Report of Military-Type Arms:** If a person has taken out on license rifles, pistols, revolvers or other similar arms of government bore (military type), he shall submit proof thereof and the company's bill to the prescribed authority within the prescribed period. If such arms are not submitted within the prescribed period without reasonable cause, the Government of Nepal may confiscate such arms without compensation. **18. Duty to Report Offenses:** Every person who becomes aware of any act or matter constituting an offense punishable under this Act shall, within a reasonable time, give information thereof to the office of the Chief District Officer or to a police office. **19. repealed by Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. 20.**

repealed by Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. 21. repealed by Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. 22. repealed by Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. 23. repealed by Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074.

amended by Some Nepal Acts Amendment Act, 2072.24. Adjudicating Officer: (1) The District Court shall have the authority to conduct initial proceedings and adjudicate cases of offenses punishable under sub-section (1) of Section 20.

(2) Except as provided in sub-section (1), the Chief District Officer shall have the authority to conduct initial proceedings and adjudicate cases of offenses punishable under this Act.

added by the Second Amendment.24A. Proceedings on Detention: Notwithstanding anything written in prevailing law, an accused in a case under this Act shall be detained and proceeded against on the basis of evidence immediately available. 25. Reward to Informer: amended by Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. A person giving information about an offense relating to arms and ammunition shall be rewarded with one-fourth of the fine imposed on the offender if the informer is a government employee, and half otherwise. 26.

Government of Nepal's Power to Make Rules: (1) The Government of Nepal may make rules for the purpose of implementing the objectives of this Act. (2) Without prejudice to the generality of the power under sub-section (1), such rules may provide for all or any of the following matters specifically:- (a) Specifying the types and numbers of arms for which licenses may be granted, (b) Specifying the form of license to be granted in relation to arms or ammunition and the terms and conditions for granting the license, (c) Specifying the period of validity of such license, (d) Determining the fee for the license, (e) Prescribing that every licensee shall maintain accounts or records in the prescribed form of acts done pursuant to the license, and directing that such accounts or records be shown to a government employee upon request for inspection, (f) Authorizing any government employee to enter and inspect places where arms or ammunition are manufactured or sold, or to audit accounts, (g) Directing a person manufacturing or selling items under license to show his arms or ammunition in his possession or control to a person authorized by the Government of Nepal, (h) Directing a person keeping arms or ammunition in his possession to provide inventory accounts to a person authorized by the Government of Nepal for inspection, (i) Making provision for renewal of licenses, (j) Making provision for allowing the opening of shops and factories for arms or ammunition within Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066., (k) Granting licenses for foreign countries, (l) Specifying which types of guns, rifles, pistols and revolvers are considered government bore. repealed by Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074.27.